

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

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MESSIAH NANTWI,

Plaintiff(s),

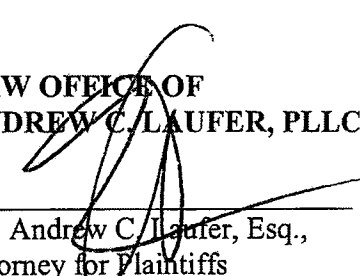
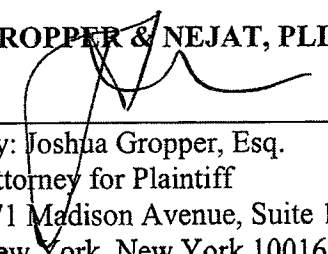
-against-

SUMMONSPlaintiff resides at:
927 Tilden Street, Apt 2
Bronx, New York 10461THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER ERICK REYES,
TAX #952161, POLICE OFFICER MALIK UNDERWOOD,
TAX #959321, SERGEANT DARREN EARL TAX # 949536
AND JOHN AND JANE DOE POLICE OFFICERS
(1-50) OF THE 40th PRECINCT,Defendant(s),
-----X

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after service of this Summons or within 30 days after the service is complete if this Summons is not personally delivered to you within the state of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is the place of incident.

Dated: New York, New York
January 18, 2022**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**
By: Andrew C. Laufer, Esq.,
Attorney for Plaintiffs
264 W 40th Street, Suite 604
New York, New York 10018
(212)422-1020**GROPPER & NEJAT, PLLC**
By: Joshua Gropper, Esq.
Attorney for Plaintiff
171 Madison Avenue, Suite 1002
New York, New York 10016

DEFENDANT'S ADDRESS

THE CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
c/o CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

POLICE OFFICER ERICK REYES, TAX #952161
OF THE 40th Precinct
257 Alexander Avenue
Bronx, New York 10454

POLICE OFFICER MALIK UNDERWOOD, TAX #959321
OF THE 40th Precinct
257 Alexander Avenue
Bronx, New York 10454

SERGEANT DARREN EARL TAX #949536
OF THE 40th Precinct
257 Alexander Avenue
Bronx, New York 10454

JOHN AND JANE DOE POLICE OFFICERS (1-50)
OF THE 40TH PRECINCT
NYPD 40th Precinct
257 Alexander Avenue
Bronx, New York 10454

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
MESSIAH NANTWI,

VERIFIED COMPLAINT

Plaintiff(s),

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER ERICK REYES,
TAX #952161, POLICE OFFICER MALIK UNDERWOOD,
TAX #959321, SERGEANT DARREN EARL TAX # 949536
AND JOHN AND JANE DOE POLICE OFFICERS
(1-50) OF THE 40th PRECINCT,

Defendant(s),

-----X

Plaintiff, by and through his attorneys, Law Office of Andrew C. Laufer, PLLC and
Gropper & Nejat, PLLC complaining of the Defendants herein, upon information and belief,
respectfully show to this Court, and allege as follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned, the Plaintiff was residents of the Bronx County, City and State of New York.
2. That at all times hereinafter mentioned Defendant, THE CITY OF NEW YORK was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned, the NEW YORK CITY POLICE DEPARTMENT was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
4. That at all times hereinafter mentioned Defendants, POLICE OFFICER ERICK REYES, TAX #952161, POLICE OFFICER MALIK UNDERWOOD, TAX #959321, SERGEANT DARREN EARL TAX #949536 AND JOHN AND JANE DOE POLICE OFFICERS (1-50) OF

THE 40th PRECINCT, were and still are employed with the NEW YORK CITY POLICE DEPARTMENT.

5. That prior to the institution of this action, a Notice of Claim was duly served upon and filed with the CITY OF NEW YORK on behalf of Plaintiff.

6. That an examination under oath has not been held to date by the CITY OF NEW YORK pursuant to Municipal Law 50-h.

That at all times herein mentioned, POLICE OFFICER ERICK REYES, TAX #952161, POLICE OFFICER MALIK UNDERWOOD, TAX #959321, SERGEANT DARREN EARL TAX #949536 AND JOHN AND JANE DOE POLICE OFFICERS (1-50) OF THE 40th PRECINCT, were acting within the scope and course of their employment with the New York Police Department, and under color of State Law.

7. That at all times herein mentioned, POLICE OFFICER ERICK REYES, TAX #952161, POLICE OFFICER MALIK UNDERWOOD, TAX #959321, SERGEANT DARREN EARL TAX #949536 AND JOHN AND JANE DOE POLICE OFFICERS (1-50) OF THE 40th PRECINCT were acting in their individual and official capacity as employees of Defendants THE CITY OF NEW YORK (CITY) and NEW YORK CITY POLICE DEPARTMENT (NYPD).

8. That all the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

STATEMENT OF FACTS AS TO ALL CAUSES OF ACTION

9. On or about February 21, 2021, at approximately 12:28 a.m., Plaintiff Messiah Nantwi was at the intersection of Elton Avenue and East 153rd Street in the County of Bronx, State of New York.

10. At said time and place, Mr. Nantwi was standing beside a storefront with another individual when an unmarked vehicle approached them.

11. Police Officer Erick Reyes was operating the vehicle while Sergeant Darren Earl and Police Officer Malik Underwood were passengers.

12. Upon observing the vehicle and having no indication the occupants were police officers, Mr. Nantwi and the other individual began to leave the location. Both traveled in different directions.

13. The individual Defendants then decided to pursue Mr. Nantwi by foot and vehicle.

14. Mr. Nantwi was then tackled to the ground by one of the officers.

15. During this time-period all three officers drew their weapons and began firing at Mr. Nantwi while he was on the ground laying in a fetal position with his back positioned towards the officers.

16. The Plaintiff was assaulted, battered, and victimized by Defendants who engaged in excessive force by shooting at Mr. Nantwi approximately 35 times while he was on the ground.

17. Mr. Nantwi was struck by at least 27 of those rounds deployed by the individual Defendants.

18. While shooting him, the Defendants yelled at the plaintiff to drop the gun. Plaintiff verbally denied he had a gun.

19. After the shots and while still on the ground, Officer Reyes began yelling profanities at the Plaintiff.

20. Several additional officers then appeared at the scene.

21. While Mr. Nantwi was bleeding profusely and fighting for his life, Officer Reyes grabbed his body and turned him over for the responding officers to view. He then let him go causing Plaintiff's face to slam into the ground.

22. Finally, paramedics appeared at the scene and transported Mr. Nantwi to Lincoln Hospital.

23. Plaintiff was immediately admitted to the hospital's intensive care unit and underwent numerous surgeries.

24. He was then transported to Bellevue Hospital for additional treatments.

25. Miraculously, Plaintiff survived this brutal assault.

26. Plaintiff will endure additional treatments, rehabilitation services, and surgeries throughout the remainder of his life. He will also require life-long emotional and psychological treatment.

27. The individual Defendants, POLICE OFFICER ERICK REYES, TAX #952161, POLICE OFFICER MALIK UNDERWOOD, TAX #959321, SERGEANT DARREN EARL TAX #949536 AND JOHN AND JANE DOE POLICE OFFICERS (1-50) OF THE 40th PRECINCT, under color of state law, subjected Plaintiff to the foregoing acts and omissions without due process of the law, thereby depriving Plaintiff of his rights, privileges and immunities secured by the First, Fourth, Eighth, and Fourteenth Amendments to the United States Constitution, including without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable searches and seizures of their person, including the excessive use of force; (b) freedom from deliberate indifference to a serious medical condition; and (c) the enjoyment of equal protection, privileges and immunities under the laws.

FIRST CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S RIGHTS UNDER THE
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION AND NEW YORK STATE LAW PREDICATED UPON THE USE OF
EXCESSIVE FORCE UPON PLAINTIFF

28. Plaintiff repeats and realleges each and every allegation contained herein as if fully set forth at length herein.

29. That on or about February 21, 2021, at approximately 12:28 a.m., Defendants, jointly and severally in their capacity as police officers, wrongfully stopped, assaulted, battered, shot, and victimized Plaintiff about his person, causing him extreme physical pain and mental suffering. At no time did Defendants have legal cause to assault, batter, shot, victimize, or engage in excessive use of force in their apprehension of Plaintiff, nor did Plaintiff consent to this illegal touching nor was or privileged by law.

30. As a result of the aforementioned actions, Defendants deprived Plaintiff of the right to be free from the use of excessive force and deliberate indifference to a serious medical condition, secured by the Constitution and Laws of the United States of America and the Fourth, Fifth, Eighth, and Fourteenth Amendments and New York State law.

31. As a result of the aforementioned actions, Defendants deprived Plaintiff of his right against the use of excessive force, assault, and battery against his person and the deliberate indifference to his serious medical condition secured by the Constitution and Laws of the United States of America, the Fourth, Fifth, Eighth, and Fourteenth Amendments and New York State law.

32. The aforementioned acts of Defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to Plaintiff's rights.

33. That by reason of the assault, battering, deliberate indifference, and victimization of Plaintiff, Plaintiff was subjected to great indignities, humiliation, and ridicule in being so

assaulted and injured, and was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and were caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

34. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. § 1983, 1988, and under New York State Law.

SECOND CAUSE OF ACTION AGAINST DEFENDANT CITY
MONELL CLAIM PURSUANT TO 42 U.S.C § 1983

35. Plaintiff repeats and realleges each and every allegation contained herein as if fully set forth at length herein.

36. All of the acts and omissions by the individual Defendants, described above were carried out pursuant to overlapping policies and practices of the CITY which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent and cooperation and under the supervisory authority of Defendants CITY and the NEW YORK CITY POLICE DEPARTMENT (NYPD).

37. Defendants CITY and NYPD, by their policy-making agents, servants, and employees, authorized sanctioned and/or ratified the individual Defendants' wrongful acts and/or failed to prevent or stop those acts and/or allowed those acts to continue.

38. Defendants assaulted, battered, shot, and victimized Plaintiff in the absence of any evidence of the necessity to use force, notwithstanding their knowledge that said excessive use of force would jeopardize Plaintiff's liberty, well-being, safety, and constitutional rights.

39. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

40. On or about February 21, 2021, Defendants did stop, seize, search, assault, shoot, and

commit a battery and grab the person of Plaintiff without probable cause to do so. They did physically seize the person of Plaintiff in an unlawful and excessive manner.

41. Plaintiff was assaulted, battered, shot victimized without the Defendants' possessing probable cause to do so.

42. The above actions of Defendants resulted in Plaintiff being deprived of the following rights under the United States Constitution.

- a. Freedom from assault to his person.
- b. Freedom from battery to his person.
- c. Freedom from the use of excessive force.
- d. Freedom from the deliberate indifference to his serious medical condition inflicted upon his person by the defendants.

43. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights.

44. Defendant CITY has grossly failed to train and adequately supervise its police officers in the fundamental law of use of force, that its police officers should only use reasonable force to effectuate compliance and that any additional force would be deemed excessive.

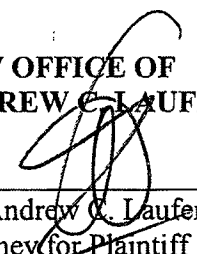
45. The direct and proximate results of the Defendants' acts are that Plaintiff suffered severe and permanent injuries of a physical and psychological nature. He was forced to endure pain and suffering to his detriment.

WHEREFORE, Plaintiff demands judgment against Defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for their pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and Plaintiff further demands punitive damages on all causes of action, in an amount to be

determined by the trier of fact, together with attorney's fees, and together with costs and disbursements.

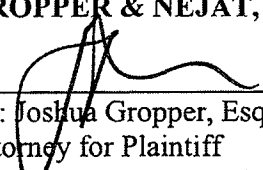
Dated: New York, New York
January 18, 2022

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**



By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
264 W 40th Street, Suite 604
New York, New York 10018
(212)422-1020

GROPPER & NEJAT, PLLC



By: Joshua Gropper, Esq.
Attorney for Plaintiff
171 Madison Avenue, Suite 1002
New York, New York 10016

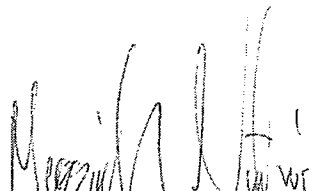
INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

MESSIAH NANTWI, individually, being duly sworn, deposes and states as follows:

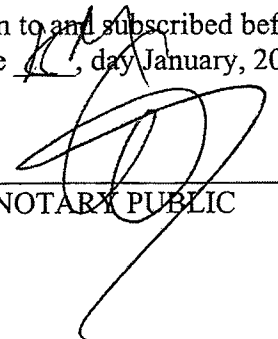
I am the Plaintiff in the above-entitled action and therefore am fully familiar with the circumstances surrounding this situation. I have read the foregoing Summons and Complaint and know the contents thereof; that the same is true to my knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters I believe them to be true.

Dated: New York, New York
 January 17, 2022



MESSIAH NANTWI

Sworn to and subscribed before me
on the 17, day January, 2022



NOTARY PUBLIC

Andrew Charles Laufer
Notary Public, State of New York
No. 01LA5087616
Qualified in Nassau County
Commission Expires Nov. 03, 2021

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index: Year:

MESSIAH NANTWI,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
POLICE OFFICER ERICK REYES, TAX #952161, POLICE OFFICER MALIK
UNDERWOOD, TAX #959321, SERGEANT DARREN EARL, TAX#949536
AND JOHN AND JANE DOE POLICE OFFICERS (1-50) OF THE 40TH
PRECINCT,

Defendants,

SUMMONS AND VERIFIED COMPLAINT

LAW OFFICE OF ANDREW C. LAUFER

Attorney(s) for Plaintiff

Office and Post Office Address
264 W. 40th Street, Suite 604
New York, NY 10018

Tel: (212) 422 1020

Fax: (212) 422 1069

To:

Signature (Rule 130-1.1-a)

Print name beneath

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for:

PLEASE TAKE NOTICE:

☐ NOTICE OF ENTRY

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on

☐ NOTICE OF SETTLEMENT

that an order of which the within is a true copy
will be presented for settlement to the HON one of the judges of the
within named Court at

on at M.

Dated,

Yours, etc.

Law Office of Andrew C. Laufer